

Ram Charan Jaiswal v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 24 July 2012 · WRIT - C No. - 32132 of 2012 · **Writ disposed; petitioner relegated to a proper clause 6.5 complaint.**

HEADNOTE

A writ in an electricity-supply dispute was disposed of without merits adjudication. The petitioner may file a proper complaint under clause 6.5 of the Electricity Supply Code, 2005; if so filed before the competent officer, it shall be decided in accordance with law by a reasoned speaking order within seven days, provided the petitioner complies with clause 6.5(b).

FACTUAL SUMMARY

Ram Charan Jaiswal filed Writ-C No. 32132 of 2012 in the Allahabad High Court against the State of Uttar Pradesh and others in an electricity-supply dispute. On 6 July 2012 a Division Bench of R.K. Agrawal and Mushaffey Ahmad, JJ. directed respondent counsel to obtain instructions and listed the petition as a fresh case for 16 July 2012. On 24 July 2012 a Division Bench of Vineet Saran and Mushaffey Ahmad, JJ. took up the matter and disposed of the writ without examining the merits of the supply grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

relegation to proper clause 6.5 complaint

HOLDING

The petitioner may file a proper complaint under clause 6.5 of the Electricity Supply Code, 2005. If such a complaint is filed before the competent officer, it shall be decided in accordance with law by a reasoned and speaking order within seven days of filing, provided the petitioner complies with the terms of clause 6.5(b). The writ petition was disposed of on that basis. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY-SUPPLY GRIEVANCE

The Court did not examine the underlying dispute; it only relegated the petitioner to a proper clause 6.5 complaint. ¶ 2